

#	Case Name	Tentative
1	23-01321154 <i>Balboa Capital Corporation vs. Anne M. Cummings, M.D.</i>	Claim of Exemption – Levy The hearing regarding Judgment Debtor Anne M. Cummings, M.D., a Medical Corporation’s Claim of Exemption is CONTINUED to August 15, 2024 at 10:00 a.m. The parties are ordered to file and serve supplemental briefs as set out below. The Court continues the hearing under Code of Civil Procedure section 703.580(c), which states: “The claim of exemption is deemed controverted by the notice of opposition to the claim of exemption and both shall be received in evidence. If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon. If not satisfied, the court shall order the hearing continued for the production of other evidence, oral or documentary.” Judgment Debtor claims an exemption for “[m]oney in accounts for individually-held and corporate-held accounts,” citing Code of Civil Procedure section 704.220. Judgment Debtor fails to adequately explain why the cited legal authority requires an exemption in this case. Judgment Debtor also does not state the precise amount it claims is exempt. Judgment Debtor shall file and serve a supplemental brief in support of the claim of exemption, no longer than five pages, no later than July 26, 2024. Judgment Debtor’s brief shall set out the exact amount it claims is exempt and explain why the amount is exempt under applicable legal authority. In its opposition, Plaintiff states, “Under CCP § 703.020(a), exemptions apply only to property of a natural person. Thus, the statement, ‘there should be separate exemptions for each’ is inaccurate because judgment debtor ‘ANNE M. CUMMINGS, M.D., A MEDICAL CORPORATION, a California corporation’ is a corporation and exemptions do not apply.” Plaintiff’s opposition is also insufficient to allow the Court to determine the validity of the claim of exemption. Plaintiff shall file and serve a supplemental brief, not to exceed five pages and including citations to applicable legal authority, no later than August 2, 2024. Therefore, the Court finds there is good cause to continue the hearing. (Code Civ. Proc. § 703.570(a).) To the extent any property claimed to be exempt is being held at this time, it is ordered not to be released until after the Court issues an order at the continued hearing. (Code Civ. Proc. § 703.580(f).) Judgment Creditor to give notice.

2	23-01352379 <i>Balboa Capital Corporation vs. International Multiple Services LLC</i>	Motion to Set Aside/Vacate Default and Judgement Motion to Set Aside Default and Default Judgment Defendant Magda Quesada (“Defendant”) moves to set aside the Default entered on January 5, 2024 and the Default Judgment entered on March 6, 2024. For the following reasons, Defendant’s motion is DENIED without prejudice. Procedural Requirements for a Motion Brought Pursuant to Code of Civil Procedure Section 473, Subdivision (b) Code of Civil Procedure Section 473(b) provides that: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” An application under section 473(b) shall be accompanied by a copy of the answer or other pleading proposed to be filed therein; and be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code Civ. Proc., § 473, subd. (b).) Defendant Quesada did not file the required proposed pleading. Although it appears that she intended to attach a proposed answer as Exhibit A, the attachment was not included in the filing. (See ROA # 107.) Defendant Quesada has not complied with the procedural requirements of this motion. Motion Set Aside Default and/or Default Judgment The Civil Procedure Code authorizes the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) The requirement that the judgment or order have been entered through “inadvertence, surprise, excusable neglect, or mistake” is “not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.” (<i>In re Wolper’s Estate</i> (1956) 146 Cal.App.2d 249, 251.) In a motion to set aside a default judgment or order under section 473(b), the initial burden is on the moving party to prove excusable neglect by a “preponderance of the evidence.” (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) Here, Defendant has not met her burden to show that the Default and Default Judgment were entered as a result of mistake, inadvertence, surprise, or excusable neglect. Defendant did not submit any evidence in support of her motion and, thus, did not prove mistake, inadvertence,
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